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**IN THE UNITED STATES DISTRICT COURT  
NORTHERN DISTRICT OF ILLINOIS  
EASTERN DIVISION  
SITTING AT CHICAGO, ILLINOIS**

ALICE E. HAACK

Plaintiff,

V.

DEANN BONGIORNO,

Defendant

**08CV2488****JUDGE DOW****MAG. JUDGE NOLAN****FILED**

MAY 01 2008 TC

May 01 2008

MICHAEL W. DOBBINS  
CLERK, U.S. DISTRICT COURT

**COMPLAINT FOR PERSONAL INJURY**

Now comes the plaintiff, ALICE E.HAACK, for a cause of action against the defendant, DEANN BONGIORNO, alleges and says:

1. That the Plaintiff is a resident of Schererville, Lake County, Indiana; and the Defendant is a resident of Chicago, Illinois, that diversity of citizenship exists and the amount in controversy excluding costs and interests exceeds \$75,000.00 and this Court's jurisdiction exists.

2. On 4<sup>th</sup> day of May 2006 while Plaintiff was driving her vehicle northbound on Burnham Avenue, Lansing Illinois, as she approached the intersection with 171<sup>st</sup>, an east-west street, the Defendant suddenly and negligently turned left to go east on 171<sup>st</sup> in front of Plaintiff cutting off Plaintiff and causing her to strike Defendant's vehicle.

3. That prior to this incident and at all relevant times the Defendant owed a duty to the Plaintiff and to others to exercise ordinary care in operating his vehicle and to operate her vehicle in a safe and proper manner and be free from negligence so as to not injure or damage the Plaintiff.

4. The Defendant breached her above duty by one or more of the following acts:

- a. The defendant failed to maintain a lookout for the plaintiff's vehicle;
- b. The defendant made an improper left turn;
- c. The defendant failed to yield the right of way in the intersection to the plaintiff;
- d. The defendant failed to signal her intention to turn left in front of plaintiff;
- e. The defendant failed to reduce her speed as she approached the intersection;
- f. The defendant failed to avoid a collision with the plaintiff;
- g. Was otherwise negligent.

5. The sole proximate cause of the collision between the Plaintiff's vehicle and the Defendant's vehicle was the negligence of the Defendant.

6. As a natural consequence of the collision due to the aforementioned negligence of the defendant, the plaintiff sustained personal injuries to her body, was in shock immediately afterwards, received a "collar" around her neck prior to being removed to an emergency vehicle and transported to a hospital.

7. The plaintiff sustained injury and experienced pain suffering to her neck, back, shoulders, chest breasts, lower back; she received cuts, bruises, and contusions knees, legs left upper arm, jaw and face. She received injuries to her face, her head and her jaw and teeth requiring surgery to repair the jaw and teeth.

8. Plaintiff suffered serious and permanent bodily injuries that caused Plaintiff to suffer pain, discomfort, and mental anguish and are reasonably certain to cause Plaintiff to suffer pain, discomfort, and mental anguish in the future; Plaintiff was disfigured and disabled and is reasonably certain to be disfigured and disabled in the future; Plaintiff has lost a normal life and is reasonably certain to experience the loss of a normal life in the future; Plaintiff has lost

earnings and benefits and is reasonably certain to lose earnings and benefits in the future; Plaintiff's earning capacity has been diminished; Plaintiff has incurred medical, nursing, and hospital expenses and is reasonably certain to incur medical, nursing, and hospital expenses in the future; and Plaintiff has been restricted in his usual activities and affairs and is reasonably certain to be restricted in her usual activities and affairs in the future;

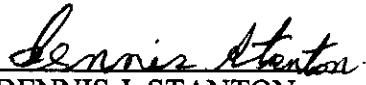
9. The plaintiff incurred doctor, dental, hospital, and medical bills in excess of \$45,000 dollars.

10. The plaintiff was driving a 2002 Ford Taurus which sustained damage and its cost to repair was \$2,305.22; that she was without the use of her car for three weeks and the reasonable rental value for a car of like kind exceeds \$30.00 per day.

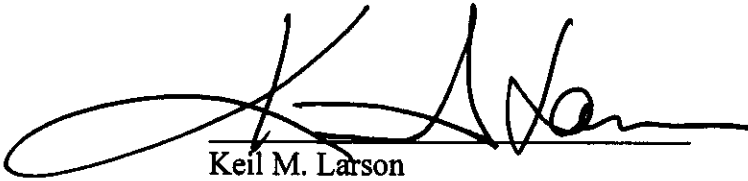
11. That the plaintiff sustained permanent injury as a natural consequence of the injuries she sustained in the collision as a result of the negligence of the defendant.

Wherefore, Plaintiff demands judgment against the defendant for money damages in the amount exceeding \$75,000.00, the costs of this action and all other relief proper in the premises.

Trial Counsel:

  
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Plaintiff demands trial by jury of all issues triable by jury.